

25CV07492 Jason Allison vs Michael Smith et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-24

Motion: 1. Motion: Change Venue; 2. Motion: Quash Deposition Subpoenas for Production of Business Records

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Tentative Ruling: Jason Allison vs Michael Smith et al

Case Number

25CV07492

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/24/2026 - 10:00

Nature of Proceedings

1. Motion: Change Venue; 2. Motion: Quash Deposition Subpoenas for Production of Business Records

Tentative Ruling

Jason Allison v. Michael Smith, et al. (Judge Sterne)

Case No. 25CV07492

Hearing Date: August 24, 2026

HEARING: (1) Motion by Defendant Michael Smith to Transfer Venue

(2) Motion by Defendant Micheal Smith to Quash Deposition Subpoenas for the Production of Business Records

ATTORNEYS: For Plaintiff Jason Allison: Gary S. Lincenberg, Christopher Jumin Lee, Bird, Marella, Rhow

For Defendant Michael Smith: Chora Young, Emmanuel Rayes, & Manasserian LLP

TENTATIVE RULING:

(1) The motion of defendant Michael Smith to transfer venue is granted. Venue of this action is transferred to the Superior Court for Orange County.

(2) The motion of defendant Michael Smith to quash deposition subpoenas for the production of business records is ordered off-calendar without prejudice, subject to being reset by the Orange County Superior Court.

Background:

On December 2, 2025, plaintiff Jason Allison initiated this action by filing a complaint against defendants Michael Smith, CMC Consumer Credit Limited, Credit Medical Financial Corporation, Credit Medical Capital Corporation, and Credit Medical Corporation, setting forth one cause of action for recognition of foreign-country money judgment pursuant to Code of Civil Procedure section 1713 et seq. As alleged in the complaint, a Canadian foreign judgment states that Defendants are liable to plaintiff in the following amounts: \$1,615,023.13 Canadian dollars in damages, \$562,187.34 Canadian dollars in prejudgment interest, and \$122,579.75 Canadian dollars in costs. (Compl., ¶ 15 & Ex. A.) Plaintiff seeks recognition of the foreign judgment, interest, costs, and attorney fees. (Compl., pp. 4-5.)

On March 3, 2026, the summons was served on defendant Michael Smith. (Proof Serv. Summ., filed March 3, 2026.) The court's records do not reflect a proof of service of summons as to the other defendants.

On May 8, 2026, defendant Michael Smith filed a motion to change venue to Orange County on the grounds that defendant is a resident of Orange County, not Santa Barbara County.

On May 15, 2026, plaintiff filed a notice of non-opposition to the motion to change venue, stating in part: "Plaintiff hereby consents to the change of venue, and respectfully requests that the Court take the August 24, 2026 hearing off calendar, and enter an order accordingly." (Not. Non-Opp.)

On June 1, 2026, defendant Michael Smith filed a motion to quash deposition subpoenas for production of business records issued to third parties Bank of America, N.A., Citibank, N.A., Deutsche Bank Trust Company Americas, HSBC Bank USA N.A., JP Morgan Chase Bank N.A., The Clearing House Payments Company L.L.C., and Wells Fargo Bank N.A. This motion is opposed by plaintiff.

Analysis:

"A motion to change venue operates as a supersedeas or stay of proceedings."

(South Sutter, LLC v. LJ Sutter Partners, L.P. (2011) 193 Cal.App.4th 634, 655.)

"Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).)

Here, defendant provided evidence that defendant Michael Smith resides in the city of Newport Beach, within Orange County. (Declaration of Emmanuel Rayes, ¶ 3.) Plaintiff does not oppose the request to transfer venue to Orange County.

“Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court.” (Code Civ. Proc., § 396b, subd. (a).) The court will grant the motion to transfer venue to Orange County.

The motion to quash deposition subpoenas will be ordered off-calendar without prejudice, subject to being reset by the Orange County Superior Court.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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